

What is a Residential Lease Agreement?

A Residential Lease Agreement is a legally binding contract between a landlord and a tenant to **outline the terms and conditions for renting a residential property**. The contract defines each party's rights and responsibilities, including rent amount, lease duration, maintenance duties, and more.

A Residential Lease Agreement is also known as a:

- Rental agreement
- Rental contract
- Tenancy agreement
- Home lease agreement

If you want to rent a commercial property to a business, use our **Commercial Lease Agreement** to outline the terms for you and your tenant.

Why is using a lease agreement important?

Residential Lease Agreements are important as **they protect both parties in a residential tenancy**. Verbal agreements can be considered valid, but they're not the most reliable. A **valid written contract is legally binding** and holds both parties accountable.

Using a lease benefits both parties in the following ways:

- **Records the landlord's rights, obligations,** and compliance with tenancy laws (e.g., disclosure requirements, entry notices, and lawful **rent increases**)
- **Records the tenants' rights and responsibilities** (e.g., rental fees, **security deposits**, and due dates)
- **Outlines key terms of use** when renting the space (e.g., no smoking, pet restrictions, and parking access)
- **Helps prevent possible disputes** over rental terms and obligations
- **Provides evidence** of the agreed-upon terms if a legal dispute occurs

It's important to note that most states require a written agreement for leases of more than one year. For example, the **California Civil Code**, the **Florida Statutes**, and the **Texas Statutes of Frauds** all require a lease of more than one year to be in writing to be enforceable.